

M/S Baba Floor Ata Mills And Another v. State Of U.P. And 3 Others

High Court of Judicature at Allahabad · Division Bench · 16.12.2023 · 2023:AHC:238400-DB · WRIT - C No. - 42699 of 2023 · **Writ disposed; appeal before Appellate Authority left open.**

HEADNOTE

Second writ after a final assessment order is disposed of. The petitioner may appeal to the Appellate Authority and may there raise the ground that Clause 6.8(c)(iii) of the Electricity Supply Code, 2005 was not followed.

FACTUAL SUMMARY

M/S Baba Floor Ata Mills and another filed a second writ petition in the Allahabad High Court after a final assessment order. In the earlier petition, Writ-C No. 36329 of 2023, only a provisional assessment order had been placed before the Court, which had observed that the petitioners could challenge the assessment once a final order was passed. The final assessment order having since been made, they returned to the writ court. Instructions filed on the day of hearing were taken on record.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8(c)

Appeal against final assessment including a 6.8(c)(iii) ground

HOLDING

Once the final assessment order has been passed, the writ petitioner may file an appeal before the Appellate Authority and may raise before that authority the grievance that Clause 6.8(c)(iii) of the Electricity Supply Code, 2005 was not followed. The writ petition is disposed of on that basis. ¶ 1

PRINCIPLE TAGS

alternative-remedy-statutory-appeal-6.8 After the final assessment order, the writ was disposed of and the petitioner was left to an appeal before the Appellate Authority, including on the ground that Clause 6.8(c)(iii) was not followed. ¶ 1

assessment-6.8-alternate-remedy The Court did not examine the final assessment or compliance with Clause 6.8(c)(iii) and treated the appellate authority as the forum for that grievance. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER CLAUSE 6.8(C)(III) OF THE ELECTRICITY SUPPLY CODE, 2005 WAS FOLLOWED IN THE FINAL ASSESSMENT, AND THE MERITS OF THAT ASSESSMENT

Left open for the petitioner to raise before the Appellate Authority. ¶ 1